

COMMISSION IMPLEMENTING REGULATION (EU) 2015/504

CELEX id	32015R0504
Document type	Regulation
Policy domain	Production, technology and research
Year	2015
Legal actor type	Public agency
Applicable role	Applicant
Language	en

COMMISSION IMPLEMENTING REGULATION (EU) 2015/504

of 11 March 2015

implementing Regulation (EU) No 167/2013 of the European Parliament and of the Council with regard to the administrative requirements for the approval and market surveillance of agricultural and forestry vehicles

(Text with EEA relevance)

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Regulation (EU) No 167/2013 of the European Parliament and of the Council of 5 February 2013 on the approval and market surveillance of agricultural or forestry vehicles (1), and in particular Article 22(4), Article 24(4), Article 25(2), (3), and (6), Article 27(1), Article 33(2), Article 34(3), Article 35(4), Article 45(2), Article 46(3) and Article 53(8) thereof,

Whereas:

(1)

This Regulation sets out the detailed administrative requirements regarding the templates for the information folder and for the information document; the template for the certificate on access to vehicle on-board diagnostics and on access to repair and maintenance information; the templates for the certificate of conformity; the models for the manufacturer's statutory plate and the models for the EU type-approval mark; the templates for the EU type-approval certificate and the template for the list of applicable requirements or acts appended to the EU type-approval certificate; the numbering system of EU type-approval certificates; the template for the test results sheet appended to the EU type-approval certificate; the general requirements for the format of test reports; the list of parts and equipment that may pose a serious risk to the correct functioning of essential systems; all aspects related to the procedure of authorisation for placing on the market and entry into service of parts or equipment that may pose a serious risk to the correct functioning of essential systems as well as the template for the certificate for placing on the market and entry into service of parts or equipment that may pose a serious risk to the correct functioning of essential systems; the numbering system of certificates for placing on the market and entry into service of parts or equipment that may pose a serious risk to the correct functioning of essential systems.

(2)

As opposed to Directive 2003/37/EC of the European Parliament and of the Council (2), Regulation (EU) No 167/2013 provides for a complete set of requirements in order to apply for EU whole-vehicle type-approval for all categories of agricultural and forestry vehicles. The administrative templates to be used in the EU type-approval procedures should be provided.

(3)

New technologies have been introduced in vehicles since the templates used in type-approval procedures were laid down in Directive 2003/37/EC of the European Parliament and of the Council. The templates used in the EU type-approval procedures should be adapted as a result.

(4)

To indicate which procedure has been chosen by the manufacturer when applying for type-approval, a new template for an 'information folder sheet' should be introduced.

(5)

In order to ensure reasonable access for independent operators to vehicle repair information, including information relating to on-board diagnostic systems and their interaction with other vehicle systems, manufacturers must provide non-discriminatory access to that information and submit proof of their compliance with that requirement to the approval authorities. A template for a corresponding manufacturer's certificate constituting such proof should be laid down.

(6)

Three templates for a certificate of conformity should be made available, corresponding to the type-approval procedures for complete, completed and incomplete vehicles.

(7)

In order to demonstrate that tractors type-approved with machinery mounted on them and R- and S-category vehicles provide a satisfactory level of safety, part of the documentation comprising the technical file for machinery set out Annex VII to Directive 2006/42/EC of the European Parliament and of the Council (3) should be included in the information folder. In addition, the EC declaration of conformity of the machinery mounted should be attached to the certificate of conformity of the vehicle.

(8)

In order to simplify the most common EU type-approval certificate, a new template should be developed exclusively for EU whole-vehicle type-approval of a complete vehicle type, while for the other combinations of vehicle types, a different template of the EU whole-vehicle type-approval certificate should be established.

(9)

A single template for the EU type-approval certificate applicable to any type of system should be established, in order to unify and simplify the templates formerly provided for in the separate Union directives for each type of system. For the same reasons, another single template should be established for components and separate technical units.

(10)

The numbering system of EU type-approval certificates, as provided for by Directive 2003/37/EC, should be modified to reflect the new structure of the acts containing the type-approval requirements with which conformity is to be certified.

(11)

To harmonise the presentation of the most relevant information from the testing of compliance with the technical requirements laid down in Regulation (EU) No 167/2013 and the delegated acts adopted pursuant to that Regulation, a minimum set of general requirements for the format of the test reports should be established.

(12)

For the same purpose, technical services should use the templates of the test reports set out in the corresponding international regulation or EN/ISO standard as a guidance for drafting the test reports on technical requirements set out in the delegated acts adopted pursuant to Regulation (EU) No 167/2013 which are based on those laid down in international regulations or EN/ISO standards.

(13)

In order to limit the burden to the manufacturers, the presentation of test reports of certain components and separate technical units issued under Directive 2003/37/EC, Directive 2007/46/EC of the European Parliament and of the Council (4), Directive 97/68/EC of the European Parliament and of the Council (5), Regulation (EU) No 595/2009 of the European Parliament and of the Council (6) or international regulations referred to in Chapter XIII of Regulation (EU) No 167/2013 and the delegated and implementing acts adopted pursuant that Regulation, should be accepted when applying for type-approvals under Regulation (EU) No 167/2013 under the condition that neither the substantive requirements nor the requirements regarding the test procedures have changed since the execution of the test.

(14)

The measures provided for in this Regulation are in accordance with the opinion of the Committee referred to in Article 69(1) of Regulation (EU) No 167/2013,

HAS ADOPTED THIS REGULATION:

Article 1

Subject matter

This Regulation provides for the implementing measures referred to in Article 68 of Regulation (EU) No 167/2013 to establish uniform conditions for the implementation of the administrative requirements for the approval of new agricultural and forestry vehicles, as well as systems, components and separate technical units designed and constructed for such vehicles and for the placing on the market and entry into service of parts or equipment which may pose a serious risk to the correct functioning of systems that are essential for the safety of the vehicle or for its environmental performance.

Article 2

Template for the information document and for the information folder

Manufacturers applying for EU type-approval shall provide the information document and the information folder referred to in Article 22(1) and Article 22(2)(a) of Regulation (EU) No 167/2013 on the basis of the template set out in Annex I to this Regulation.

Article 3

Template for the manufacturer's certificate on access to vehicle on-board diagnostics (OBD) and to vehicle repair and maintenance information

Manufacturers concerned by Article 53(1) of Regulation (EU) No 167/2013 applying for EU type-approval shall provide the approval authority with a certificate on access to vehicle OBD and vehicle repair and maintenance information in accordance with Article 53(8) of that Regulation on the basis of the template set out in Annex II to this Regulation.

Article 4

Templates for the certificate of conformity

Manufacturers shall issue the certificate of conformity referred to in Article 33(1) of Regulation (EU) No 167/2013 in accordance with the templates set out in Annex III to this Regulation.

Article 5

Models for the statutory plate and EU type-approval mark

Manufacturers shall issue the statutory plate and the EU type-approval mark referred to in Article 34(1) and (2) of Regulation (EU) No 167/2013 in accordance with the models set out in Annex IV to this Regulation.

Article 6

Templates for the EU type-approval certificate

Approval authorities shall issue the EU type-approval certificates referred to in Article 25(1) of Regulation (EU) No 167/2013 in accordance with the templates set out in Annex V to this Regulation.

Article 7

Numbering system of EU type-approval certificates

EU type-approval certificates shall be numbered in accordance with Annex VI.

Article 8

Template for the test results sheet

Approval authorities shall issue the test results sheet referred to in Article 25(3)(a) of Regulation (EU) No 167/2013 in accordance with the template set out in Annex VII to this Regulation.

Article 9

Format of test reports

1. The format of the test reports referred to in Article 27(1) of Regulation (EU) No 167/2013 shall comply with the general requirements set out in Annex VIII to this Regulation.

2. Existing test reports for components and separate technical units issued under Directive 2003/37/EC, Directive 2007/46/EC, Directive 97/68/EC, Regulation (EU) No 595/2009 or international regulations referred to in Chapter XIII of Regulation (EU) No 167/2013 and the delegated and implementing acts adopted pursuant that Regulation, shall be accepted for the purposes of type-approval under Regulation (EU) No 167/2013 under the condition that neither the substantive requirements nor the requirements regarding the test procedures have changed since the execution of the test. Test reports fulfilling these conditions shall be listed in Annex VIII to this Regulation.

Article 10

List of parts or equipment which may pose a serious risk to the correct functioning of essential systems

The list of parts or equipment which may pose a serious risk to the correct functioning of systems that are essential for the safety of the vehicle or for its environmental performance referred to in Article 45(2) of Regulation (EU) No 167/2013 is set out in Annex IX to this Regulation.

Article 11

Template for the certificate for the placing on the market and entry into service of parts or equipment which may pose a serious risk to the correct functioning of essential systems

Approval authorities shall issue the certificate for the placing on the market and entry into service of parts or equipment which may pose a serious risk to the correct functioning of systems that are essential for the safety of the vehicle or for its environmental performance referred to in Article 46(2) of Regulation (EU) No 167/2013 in accordance with the template set out in Annex X to this Regulation.

Article 12

Numbering system of certificates for the placing on the market and entry into service of parts or equipment which may pose a serious risk to the correct functioning of essential systems

Certificates for the placing on the market and entry into service of parts or equipment which may pose a serious risk to the correct functioning of systems that are essential for the safety of the vehicle or for its environmental performance shall be numbered in accordance with Annex XI.

Article 13

Entry into force and application

This Regulation shall enter into force on the twentieth day following that of its publication in the Official Journal of the European Union.

It shall apply from 1 January 2016.

This Regulation shall be binding in its entirety and directly applicable in all Member States.

Done at Brussels, 11 March 2015.